

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey McCann	Team: Squad #14	CCRB Case #: 202105358	☒ Force	☒ Discourt.	☒ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 08/01/2021 5:30 PM, Friday, 12/17/2021 11:11 AM	Location of Incident: 60th Precinct stationhouse; Civilian Complaint Review Board	18 Mo. SOL 2/1/2023	Precinct: 60		
Date/Time CV Reported Wed, 08/18/2021 9:02 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/18/2021 9:02 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			060 PCT
2. POM Jiantong Li	12604	967579	060 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Paul Incorvaia	12325	967556	060 PCT
2. DI James King	00000	925544	060 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Discourtesy: On August 1, 2021, at the 60th Precinct stationhouse in Brooklyn, officers spoke discourteously to § 87(2)(b)	
B . POM Jiantong Li	Force: On August 1, 2021, at the 60th Precinct stationhouse in Brooklyn, Police Officer Jian Tong Li used physical force against § 87(2)(b)	
C . POM Jiantong Li	Untruthful Stmt.: On December 17, 2021, at 100 Church Street in Manhattan, Police Officer Jian Tong Li provided a false official statement to the CCRB.	

Case Summary

On August 18, 2021, § 87(2)(b) filed this complaint with the CCRB via telephone.

On August 1, 2021, at approximately 5:30 p.m., § 87(2)(b) went to the 60th Precinct stationhouse in Brooklyn to retrieve his property after his arrest the night prior, in which his vehicle was seized for forfeiture (see CCRB case number § 87(2)(b)). After speaking with officers, including Police Officer Jian Tong Li, § 87(2)(b) arresting officer from the night prior, and Police Officer Paul Incorvaia, both of the 60th Precinct, unidentified officers allegedly told § 87(2)(b) “Get the fuck out of here” (**Allegation A: Discourtesy**, § 87(2)(g)). PO Li grabbed § 87(2)(b) bicep and removed him from the stationhouse. Once outside the stationhouse, PO Li pushed § 87(2)(b) twice on his chest (**Allegation B: Force**, § 87(2)(g)).

On December 17, 2021, at 100 Church Street in Manhattan, PO Li provided a false official statement to the CCRB (**Allegation C: Untruthful Statement**, § 87(2)(g)).

No arrests or summonses resulted from this incident.

Stationhouse video footage was received and will be discussed in further detail below.

There is no body-worn camera footage of this incident as its activation was not required per the NYPD Patrol Guide.

Findings and Recommendations

Allegation (A) Discourtesy: On August 1, 2021, at the 60th Precinct stationhouse in Brooklyn, officers spoke discourteously to § 87(2)(b)

The investigation established the following facts:

On August 1, 2021, at approximately 5:30 p.m., § 87(2)(b) went to the 60th Precinct stationhouse in Brooklyn to retrieve his property after his arrest the night prior, in which his vehicle was seized and vouchered for forfeiture (under investigation in CCRB case number § 87(2)(b)). Officers returned all of § 87(2)(b) other property, which was vouchered for safekeeping, and when § 87(2)(b) inquired about his vehicle, PO Li, PO Incorvaia, and other officers explained that § 87(2)(b) vehicle would not be released, as it was used in the commission of a crime and was vouchered for forfeiture. PO Li grabbed § 87(2)(b) arm, walked him down a small set of stairs to the stationhouse door, and pushed him twice on the chest once he was outside.

§ 87(2)(b) (BR 01) testified that when he arrived at the stationhouse, he spoke with an officer, positioned behind a window in the stationhouse, who returned his property to him and explained that his vehicle was forfeited. § 87(2)(b) asked the officer to get his arresting officer from the night before, PO Li. PO Li reiterated that his car was forfeited because it was used in a crime, which § 87(2)(b) disputed. Two other officers, described as a sergeant and an officer who identified himself as the head of the precinct, reiterated that § 87(2)(b) was not getting his vehicle back. PO Li instructed § 87(2)(b) to get his belongings and § 87(2)(b) did so. As § 87(2)(b) was walking out of the stationhouse, he said, “All you white cops here are acting like this because I’m black. Is that what it is? Y’all treating me like shit.” Officers, who § 87(2)(b) could not describe, said, “Get the fuck out of here.”

Stationhouse video footage from the 60th Precinct lobby (BR 02-04), which does not have an audio component, shows § 87(2)(b) enter the stationhouse at approximately 5:29 p.m. By approximately 6:28 p.m., officers return § 87(2)(b) property to him. § 87(2)(b) continues to stand in front of a glass window partition with two large plastic bags filled with his property, as well as a pink backpack, positioned on a row of chairs in the front of the window partition. In a sub-clip created from the lobby view of the stationhouse (BR 05), § 87(2)(b) appears to engage in an animated discussion with someone behind the window partition, though the person is not visible (<<00:00 – 01:08>>). A group of approximately six officers, including PO Li, enter the lobby area. PO Li grabs § 87(2)(b) by his right bicep and pulls him toward the door. The remaining officers carry § 87(2)(b) property out of the stationhouse (<<01:09 – 01:30>>).

PO Li (BR 06) and PO Incorvaia (BR 07) provided consistent testimony that they both spoke with § 87(2)(b) regarding his vehicle and explained the reason it was forfeited. The

Commanding Officer of the 60th Precinct, Deputy Inspector James King, also spoke with § 87(2)(b) regarding his vehicle, but § 87(2)(b) yelled at the officers. Neither PO Li nor PO Incorvaia recalled any officer tell § 87(2)(b) “Get the fuck out of here,” and denied making the statement themselves. Due to § 87(2)(b) yelling, PO Li escorted § 87(2)(b) out of the stationhouse.

§ 87(2)(g)

Allegation (B) Force: On August 1, 2021, at the 60th Precinct stationhouse in Brooklyn, Police Officer Jian Tong Li used physical force against § 87(2)(b)

§ 87(2)(b) testified that as he gathered his belongings, PO Li held his arm and walked him toward the exit. As § 87(2)(b) took one step down the stairs which lead out of the stationhouse, PO Li pushed § 87(2)(b) on his chest and shoulder area, causing § 87(2)(b) to stumble and drop his belongings. § 87(2)(b) caught his balance and did not fall. Another officer assisted § 87(2)(b) in picking up his belongings. § 87(2)(b) then left the stationhouse.

As mentioned above, stationhouse video footage from the 60th Precinct lobby, shows PO Li grab § 87(2)(b) by his right bicep and pull him toward the door. A sub-clip of stationhouse video footage from the 60th Precinct vestibule area (BR 08), which captures the outermost doors of the stationhouse and a set of approximately five stairs, shows PO Li, whose back is to the camera, continuing to hold § 87(2)(b) right bicep and walk § 87(2)(b) down the stairs and out the outermost doors. Once outside, PO Li, whose back is still to the camera, pushes § 87(2)(b) once on his chest and left shoulder area as § 87(2)(b) walks backwards toward an unmarked vehicle parked slightly to the right of the stationhouse doors. § 87(2)(b) head is not visible at this time due to his positioning relative to the outermost doors (<<00:00 – 00:04>>). Finally, a sub-clip of stationhouse video footage from the exterior of the 60th Precinct (BR 09) captures PO Li push § 87(2)(b) with one hand on his chest area, causing § 87(2)(b) to move backward toward the unmarked vehicle. As § 87(2)(b) continues to walk backwards, PO Li pushes § 87(2)(b) a second time approximately two seconds later, this time with both his hands, on § 87(2)(b) chest, again causing § 87(2)(b) to move backwards (<<00:08 – 00:14>>).

PO Li testified that he escorted § 87(2)(b) out of the stationhouse after § 87(2)(b) began yelling by grabbing one of his arms, though he did not remember which arm he grabbed. PO Li denied pushing § 87(2)(b) or using any physical force against him. After reviewing both the vestibule view and exterior view of the stationhouse video footage – two times for each angle – PO Li maintained that he did not push § 87(2)(b) and was only “escorting” him and instructing him to “get back.” PO Li again denied using any physical force against § 87(2)(b) during this incident.

PO Incorvaia testified that he did not recall if PO Li made bodily contact with § 87(2)(b) when removing him from the stationhouse and specifically did not recall seeing PO Li push § 87(2)(b). After reviewing the exterior stationhouse video footage, PO Incorvaia testified that he did not independently recall PO Li pushing § 87(2)(b) on the chest.

Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. NYPD Patrol Guide Procedure 221-01 (BR 10).

§ 87(2)(g)

§ 87(2)(b) stationhouse video footage did show PO Li twice push § 87(2)(b) when § 87(2)(b) was completely outside the stationhouse. § 87(2)(g) video footage undisputedly captures PO Li push § 87(2)(b) twice on the chest, § 87(2)(g)

§ 87(2)(g)

at the time PO Li pushed § 87(2)(b) PO Li had already removed § 87(2)(b) from the stationhouse. § 87(2)(g)

Allegation (C) Untruthful Statement: On December 17, 2021, at 100 Church Street in Manhattan, Police Officer Jian Tong Li provided a false official statement to the CCRB.

As mentioned in Allegation B, during his interview on December 17, 2021, PO Li continued to testify that he only “escorted” § 87(2)(b) out of the stationhouse, even after being presented with two different angles of stationhouse footage and reviewing each angle twice, which both depict PO Li push § 87(2)(b) on the chest.

After presenting stationhouse video footage of the vestibule area (BR 08), the following exchange occurred between the undersigned and PO Li (BR 06, interview audio <<16:27 – 16:38>>):

SI McCann: It appears, Officer Li, that once § 87(2)(b) is kind of through these double doors, here – these blue double doors – and outside, that you push him. Do you know why you did that?

PO Li: No, he’s not pushed. I escorted him.

The undersigned then played the video a second time for PO Li and directed his attention to the windows of the double doors, which is the area in which the push is most visible. The below exchange occurred after PO Li watched the video a second time (interview audio <<17:06 – 17:18>>):

SI McCann: It appears that as § 87(2)(b) turns around, you push him. Do you see that in the video?

PO Li: That’s not push. That’s escort.

SI McCann: So, you don’t see yourself push § 87(2)(b) at any point here?

PO Li: No.

PO Li then reviewed the exterior stationhouse video footage (BR 09) and the undersigned directed his attention toward the top right of the screen, near the unmarked vehicle. After reviewing the footage, the following exchange occurred (interview audio <<18:21 – 18:30>>):

SI McCann: Officer, in this clip, did you see yourself push § 87(2)(b) on his chest?

PO Li: No, I’m escorting. Asking him to get back, get back.

The undersigned played the video again for PO Li and asked that he pay attention to § 87(2)(b) chest area. After reviewing the footage a second time, the following exchange occurred (interview audio <<18:56 – 19:16>>):

SI McCann: So right there, at 6:38:12 [the time stamp on the stationhouse footage], it appears that you kind of extend your arms against § 87(2)(b) chest. Did you push § 87(2)(b) at that point?

PO Li: No, that’s escorting. I told him to get back. I didn’t push.

SI McCann: Did you ever use any physical force against § 87(2)(b) during this incident?

PO Li: No.

Officers are prohibited from intentionally making a false official statement, which is an intentional statement that a member of the service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made. NYPD Administrative Guide 304-10 (BR 11).

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Li has been a member of service for two years and has been a subject in five CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- As of September 20, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (BR 13).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 14

Investigator:	<u>Casey McCann</u>	<u>SI Casey McCann</u>	<u>02/03/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Cassandra Fenkel</u>	<u>IM Cassandra Fenkel</u>	<u>02/03/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date